

one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP § 2025.480(j).) Plaintiff seeks sanctions against Defendants in the amount of \$5,925.00. Defendants prevailed on Requests 3 through 6 and Request 8, and their pre-filing concessions resolved Requests 1 and 2. Defendants also proposed an Informal Discovery Conference to narrow the dispute, which Plaintiff declined. Defendants' opposition was substantially justified.

Defendants cross-seek sanctions against Plaintiff in the amount of \$2,775.00. Plaintiff prevailed in obtaining the reopening of Requests 1, 2, and 7, deposition conduct orders, additional time, and an advice of counsel preclusion order. The motion was not frivolous, and Plaintiff acted with substantial justification.

Additionally, because the motion was resolved on mixed grounds with pre-filing concessions on multiple issues, other circumstances would make imposition of sanctions on either side unjust. **The court denies both parties' requests for sanctions.**

In sum, the motion is granted in part, denied in part as provided herein. The Plaintiff's request for sanctions is denied, as is Defendants' request for sanctions.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507434	JOHNSON vs FCA US LLC	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling:

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time to file a demurrer has expired. (CCP § 438(c).) Thus, a motion for judgment on the pleadings attacks only defects disclosed on the face of the pleading or by matters that can be judicially noticed. (*Cloud v. Northrop Gruman Corp.* (1998) 67 Cal.App.4th 995, 999.) A defendant may move for judgment on the pleadings where "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." (CCP §438(c)(1)(B)(ii).)

Applicable Statutes of Limitations

FCA argues the 1st, 2nd, 4th, and 6th causes of action are time-barred (see CCP §§ 338, 871.20, 871.21.)

CCP § 871.21

CCP §§ 871.20, *et. seq.* was enacted on 9/29/24 and became effective as of 1/1/25. This chapter provides for pre-suit notice (effective 4/1/25, delayed to 7/1/25 by SB 26), streamlined discovery, mandatory mediation if the manufacturer responds, and strict

deadlines/penalties. FCA asserts that under CCP § 871.21(b), “[a]n action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.” CCP § 871.20 states that “this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.”

Specifically, under § 871.29(a), a manufacturer *may* elect to be governed by this chapter for all actions described in § 871.20. Section 871.29(b) provides: “Unless a manufacturer has made the election described in subdivision (a) that covers a given year, Sections 871.20 to 871.28, inclusive, shall not apply” This section became effective on 4/2/25 (delayed to 7/1/25 by SB 26), *after* the present action was filed. Nonetheless, FCA opted into the new procedures on 4/25/25.

FCA asserts Plaintiff’s Complaint was filed on 2/11/25, which contains the 1st and 2nd causes of action for violations of CC § 1793.2(b), and (d). (Compl. ¶¶ 7-50.) FCA asserts Plaintiff purchased the vehicle on 4/28/17 with a 3-year basic limited warranty and a 5-year powertrain warranty. (*Id.* ¶¶ 7-8, 40-50.) In the motion, FCA points out the applicable express warranties expired on 4/28/20 and 4/28/22, respectively. (*Id.* ¶ 8.) FCA concludes, citing CCP § 871.21, that the statute of limitations period for the first two causes of action expired one year after the warranties ended (on 4/28/21 and on 4/28/23) but, in no event later than six years after the date of the original delivery date (on or about 4/28/23.)

Plaintiff argues applying CCP § 871.21 in this manner constitutes improper retroactive application of a statute, which violates due process. In general, statutes operate prospectively unless the Legislature has clearly expressed otherwise. (*Evangelatos v. Sup. Ct.* (1988) 44 Cal.3d 1188, 1208.) Plaintiff asserts: “If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party.” (*Rosefield Packing Co. v. Sup. Ct.* (1935) 4 Cal.2d 120, 122-123.)

Here, Plaintiff asserts the statute became effective on 1/1/25. Plaintiff’s Complaint was filed on 2/11/25 prior to the effective date of § 871.21’s opt-in procedure (4/2/25, delayed to 7/1/25 by SB 26). FCA did not opt in to the new procedures until 4/25/25. Plaintiff argues that under *Rosefield*, applying § 871.21 in this manner, before FCA opted in, eliminates Plaintiff’s Song Beverly claims before his awareness of whether the statute applies.

However, this is not a retroactive application. It applies to Plaintiff’s lawsuit because it was filed *after* the statute became effective. Moreover, the opt-in requirement for manufacturers was not in effect when this action was filed on 2/11/25 so, FCA “did not

need to opt-in for section 871.21 to be effective when Plaintiff filed this action.” (see *Khosrowshahi v. Ford Motor Co.* 2025 Cal. Super. LEXIS 62043 *6.) As such, CCP § 871.21’s statute of limitations periods was in effect as of 1/1/25 meaning the six year deadline was in place when Plaintiff’s Complaint was filed on 2/11/25. CCP § 871.30(a) expressly permits a manufacturer to elect to be governed by § 871.21 as to all vehicles sold in 2025 *and in all prior years* by providing written notice to the Arbitration Certification Program within the Department of Consumer Affairs. Thus, once FCA opted-in, Plaintiff’s vehicle was subject to CCP § 871.21 for all purposes. Plaintiff has not demonstrated otherwise.

Plaintiff further argues tolling doctrines apply to CCP § 871.21’s statutes of limitations. This statute contains express tolling provisions: 1) as provided by CC § 1793.22(c); 2) for time the motor vehicle is out of service by reason of repair for nonconformity; and, 3) for the time period after a pre-suit notice is provided to the manufacturer under CCP § 871.24, which shall not exceed 60 days. Plaintiff is not relying on any of these express tolling provisions.

Instead, the Complaint alleges tolling doctrines apply and names them in conclusory fashion (e.g., delayed discovery.) (Compl. ¶ 37.) Plaintiff argues delayed discovery is applicable to a breach of express warranty claim. (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 215 [where warranty explicitly extends to future performance of the goods, the breach of warranty occurs only on discovery of the breach.]) Plaintiff asserts his claims did not accrue until he recently discovered FCA’s warranty breaches, which could not have been discovered until after the vehicle’s defects persisted after the expiration of the warranty. (see *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 148-149.) Nonetheless, delayed discovery must be properly alleged in the context of this action. And, Plaintiff must plead around the statute of limitations bar, if possible. The 1st and 2nd causes of action are time-barred, and this motion is granted without leave to amend.

Plaintiff also argues that as to the 4th cause of action for breach of implied warranty, the statute of limitations period accrues when the breach is or should have been discovered. He asserts this may occur when the goods contain a latent defect that is not discoverable at the time of sale. (see *Mexia v. Riker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304.) Generally, the delayed discovery rule applies to implied warranty claims. (*Id.* at 1309.) However, as currently alleged, the Complaint does not adequately allege delayed discovery as to the 4th cause of action. The motion is granted with ten (10) days leave to amend.

CCP § 338

As to the 6th cause of action for fraud, FCA argues it is subject to the three-year statute of limitations period in CCP § 338(d). Plaintiff asserts the fraud claim is time-barred as of 4/28/20 based on the purchase date of 4/28/17. (CCP § 338(d).) However, as with the 4th cause of action, delayed discovery may save the claim if it is properly alleged. Currently, it is not. Thus, the motion is granted with ten (10) days leave to amend.

3rd Cause of Action for Violation of Civil Code § 1793.2(a)(3)

FCA argues this statute requires every manufacturer of goods sold in California that is accompanied by an express warranty to “[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” (CC § 1793.2(a)(3).) FCA correctly asserts the Complaint contains no such factual allegations. The Complaint alleges this cause of action in conclusory fashion. It does not allege *facts* regarding the subject vehicle’s service and repair history including whether/when it was presented to an authorized service/repair facility and that the dealership was unable to conform the vehicle because FCA failed to provide adequate literature or parts. As a result, the motion is granted, with ten (10) days leave to amend.

5th Cause of Action for Negligent Repair

The elements of negligence cause of action are: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal. 4th 913, 917.)

This cause of action is alleged only against Aaron CJDR, which argues that there are no facts showing its actual negligence. (see Compl. ¶¶ 59-63.) To the contrary, Plaintiff argues negligence can be alleged the way it is, which puts Aaron CJDR on notice. Aaron CJDR is correct that the allegations in this cause of action are entirely conclusory and contain no facts attributing any wrongful conduct to Aaron CJDR. Plaintiff does not point to any prior factual allegations incorporated into this cause of action. As a result, the motion is granted with ten (10) days leave to amend.

Punitive Damages

FCA correctly argues that since the fraud cause of action fails, so does Plaintiff’s claim for punitive damages. The fraud cause of action is time-barred. As discussed above, Plaintiff may be able to plead around the time bar by properly alleging delayed discovery. The fraud claim is the only claim that can support punitive damages in this action. Thus, the motion is granted as to punitive damages because the 6th cause of action for fraud is time-barred. The punitive damages claim is thus contingent on whether the 6th cause of action can be properly amended; accordingly, the court grants the motion as to punitive damages with ten (10) days leave to amend.

The motion is granted in part, denied in part.

It is granted as to the 1st and 2nd causes of action without leave to amend for being time-barred by CCP § 871.21.

It is granted as to the 4th and 6th causes of action with ten (10) days leave to amend to add tolling doctrines (e.g. delayed discovery) and as to the 3rd, 4th, and

5th causes of action with ten (10) days leave to amend. As to the punitive damages claim, the motion is granted with ten (10) days leave to amend, contingent upon the amendment of the 6th cause of action.

The ten (10) days leave to amend is from the date of service of the notice of ruling or service of the signed order, whichever is first.

Moving party is ordered to give notice.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2604148	FERRARI FINANCIAL SERVICES, INC. vs LEE	APPLICATION FOR WRIT OF POSSESSION

Tentative Ruling:

The application for a temporary restraining order (and writ of possession after hearing) is denied. Although a Notice of Application for Writ of Possession and Hearing was filed on September 3, 2026, there is no proof of service filed and there is nothing to show that defendants were given any notice.

6.

CASE #	CASE NAME	HEARING NAME
RIC2000374	THE CITY OF JURUPA VALLEY vs BRACKINS	MOTION FOR ORDER APPROVING RECEIVER'S FINAL REPORT AND FINAL ACCOUNTING, RECEIVER'S FEES AND COSTS AND DISCHARGING RECEIVER

Tentative Ruling:

A receiver is an agent and officer of the court, and “is obligated to preserve and manage the property during the course of the receivership.” (*Southern California Sunbelt Developers, Inc. v. Banyan Limited Part.* (2017) 8 Cal.App.5th 910, 922.) They “are entitled to compensation for their own services and the services performed by their attorneys. ... Generally, the costs of a receivership are paid from the property in the receivership estate. ... However, courts may also impose the receiver costs on a party who sought the appointment of the receiver or apportion them among the parties, depending upon circumstances.” (*Ibid.* [internal quotations and citations omitted].) “A receivership terminates upon completion of the duties for which the receiver was appointed; or at any other time upon court order.” (Ahart, *California Practice Guide: Enforcing Judgments & Debts* §4:940 (Rutter Group 2023.) A receiver must present by noticed motion or stipulation of all parties: (1) a final account and report; (2) a request for the discharge; and (3) a request for exoneration of the receiver’s surety. (Cal. R. Ct. 3.1184(a)(1)-(3).) If any allowance of compensation for the receiver is claimed in an